

TENTATIVE RULING

Case: **Wu v. General Motors, LLC**
Case No. CV2024-1762

Hearing Date: **March 11, 2026** **Department Fourteen** **9:00 a.m.**

Demurrer:

The Court rules on defendant General Motors, LLC's demurrer to plaintiff's first amended complaint as follows:

- Defendant's demurrer to the sixth cause of action for fraudulent inducement – concealment on the ground that it is time-barred by the three-year statute of limitations is **OVERRULED**. (Code Civ. Proc., §§ 430.10, subd. (e); see *Bell v. Bank of California* (1908) 153 Cal. 234, 245.) The Court finds that plaintiff's delay in discovering the alleged fraud was excusable and that the delayed discovery doctrine applies. (*Jolly v. Eli Lilly & Co.* (1988) 44 Cal.3d 1103, 1110 ["Under the discovery rule, the statute of limitations begins to run when the plaintiff suspects or should suspect that her injury was caused by wrongdoing, that someone has done something wrong to her."]; *Johnson v. Ehrigott* (1934) 1 Cal.2d 136, 137-138; FAC, ¶¶ 39, 42, 46, 85, 86.) The Court also notes that the date plaintiff discovered defendant's alleged fraud is not identified in the first amended complaint; thus, the Court cannot determine if plaintiff complied with the three-year statute of limitations set forth in Code of Civil Procedure section 338. (See *Jolly, supra*, 44 Cal.3d at p. 1112 [when a plaintiff reasonably should have discovered facts for purposes of the accrual of a cause of action may only be decided as a matter of law if the allegations in the complaint and facts properly subject to judicial notice can support only one reasonable conclusion]; FAC, ¶¶ 39, 42.)
- Defendant's demurrer to the sixth cause of action for fraudulent inducement – concealment on the ground that it fails to allege facts sufficient to state a cause of action is **OVERRULED**. (Code Civ. Proc., §§ 430.10, subd. (e).) The Court finds that plaintiff has sufficiently alleged facts to state this cause of action. (See *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 843 – 844; see also *Alfaro v. Community Housing Improvement System & Planning Assn., Inc.* (2009) 171 Cal.App.4th 1356, 1382, 1384 ["Less specificity should be required of fraud claims "when 'it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy..."]"; *Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 217; FAC, ¶¶ 21, 24, 25, 30, 31, 33, 34, 37, 39, 45, 46, 83 – 87, 89 – 91 and 93.)
- Defendant's demurrer to the sixth cause of action for fraudulent inducement – concealment on the ground that it fails to allege a transactional relationship giving rise to a duty to disclose is **OVERRULED**. (Code Civ. Proc., §§ 430.10, subd. (e).) The Court finds that plaintiff has sufficiently alleged facts to state this cause of action. (*Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276, 310-311; *LiMandri v. Judkins* (1997) 52 Cal.App.4th 326, 336, 337 [a duty to disclose may arise from the relationship between seller and buyer or parties entering into any kind of contractual agreement]; see *Dhital, supra*, 84 Cal.App.5th at pp. 843 – 844 ["Suppression of a material fact is actionable

when there is a duty of disclosure, which may arise from a relationship between the parties, such as a buyer-seller relationship.”]; FAC, ¶¶ 6, 7, 28, 31, 33, 39, 41, 45, 46, 84 – 86, 88 – 92.)

The notice of demurrer does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion to strike:

Defendant General Motors, LLC’s motion to strike plaintiff’s first amended complaint is **DENIED**. (Code Civ. Proc., §§ 435, 436.) The Court finds that the first amended complaint sufficiently alleges facts to support a claim for punitive damages. (Civ. Code, § 3294; *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1228 [a conscious disregard for the safety of another may be sufficient to prove malice where the defendant is aware of the probable dangerous consequences of his or her conduct and he or she willfully fails to avoid such consequences]; FAC, ¶¶ 21, 23, 25, 37, 41 and 84.)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.